

25NNCV08870 25NNCV08870

County: los-angeles

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Case Number: 25NNCV08870 Hearing Date: July 31, 2026 Dept: D

TENTATIVE RULING

Calendar: 2

Date: July 31, 2026

Case No: 25NNCV08870 Trial Date: Not yet set

Case Name: Girgus v. Shaar, et al.

DEMURRER

[CCP § 430.20]

Moving Party: Defendant, Michael Shaar

Responding Party: Plaintiff, Johnathan Girgus [Unopposed]

RELIEF REQUESTED:

Sustain demurrer to the First Amended Complaint.

CAUSES OF ACTION: from First Amended Complaint

1) Declaratory Relief

SUMMARY OF FACTS:

The First Amended Complaint ("FAC") alleges that Johnathan Girgus ("Plaintiff") is a tenant residing at 3610 W. Chandler Blvd., Unit A, Burbank, California and that defendant Michael Shaar dba S.I.G. Property Management ("Defendant") owns/and or manages the property. Plaintiff alleges that he has resided at the premises since approximately 2019 pursuant to a rental agreement. Plaintiff alleges that there is decayed and crumbling wood in the kitchen area of the unit. Plaintiff alleges that he has repeatedly observed moisture intrusion, damp conditions and elevated indoor humidity which has contributed to odors and fungus gnat activity. Plaintiff alleges that the flooring in the property exhibits movement, separation at seams, squeaking, and instability. Plaintiff alleges that he has repeatedly notified Defendant of these issues and that the repairs performed have not corrected the problems. Plaintiff brings this action for declaratory relief seeking a judicial determination of the parties' rights and obligations regarding Defendant's duty to maintain the premises in a safe and habitable condition.

ANALYSIS:

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; CCP, § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212, superseded by statute as stated in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

Declaratory Relief

Defendant demurs to the sole cause of action for declaratory relief arguing that declaratory relief is not proper under the circumstances here.

"To qualify for declaratory relief, a party would have to demonstrate its action presented two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party's rights or obligations." (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909, quotation marks and brackets omitted.) Declaratory relief is an equitable remedy that merely declares the legal relationship between the parties without ordering any party to do or refrain from doing something. (Mycogen Corp. v. Monsanto Co., 28 Cal.4th (2002) 888, 898.)

Declaratory relief operates prospectively to set controversies at rest, and where there is an accrued cause of action for an actual breach of contract, declaratory relief may be denied. (Osseous Technologies of America, Inc. v. DiscoveryOrtho Partners LLC (2010) 191 Cal.App.4th 357, 366.) "The declaratory relief statute should not be used for the purpose of anticipating and determining an issue which can be determined in the main action. The object of the statute is to afford a new form of relief where needed and not to furnish a litigant with a second cause of action for the determination of identical issues." [Citation.] "Under section 1061 of the Code of Civil Procedure, the court may refuse to exercise the power to grant declaratory relief where such relief is not necessary or proper at the time under all of the circumstances." (Cal. Ins. Guar. Ass'n v. Superior Court (1991) 231 Cal.App.3d 1617, 1623-1624.)

Here, Plaintiff alleges that he "occupies the unit under a rental agreement requiring Defendant to maintain the premises in a safe and habitable condition." (FAC, ¶ 4.) Plaintiff alleges various moisture and structural conditions which "materially interfere with the safe and comfortable use of the premises." (FAC, ¶¶ 5-14.) Plaintiff alleges that Defendant's repair efforts

have been inadequate and have failed to correct the underlying issues. (FAC, ¶ 16.) Lastly, Plaintiff alleges that there is an “actual controversy” between Plaintiff and Defendant “regarding Defendant’s duties to maintain structural components, correct moisture intrusion, repair deterioration, and maintain habitable conditions.”

The above allegations do not present a proper subject for declaratory relief. Plaintiff’s claim is directed at alleged past conduct. Specifically, Plaintiff seeks redress for structural and moisture issues that have already manifested at the property. (FAC, Prayer.) “[T]here is no basis for declaratory relief where only past wrongs are involved.” (Osseous Technologies, supra, 191 Cal.App.4th at p. 366, quotation marks omitted.) Rather, declaratory relief is “to be used in the interests of preventive justice, to declare rights rather than execute them.” (Cordoba Corp. v. City of Industry (2023) 87 Cal.App.5th 145, 157, quoting Babb v. Superior Court (1971) 3 Cal.3d 841, 848.)

The FAC alleges that Defendant has a duty to maintain the premises in a safe and habitable condition and has failed to do. Substantively, Plaintiff seeks to compel Defendant to remedy existing conditions, rather than merely obtain a declaration regarding the parties’ prospective rights and obligations. Because the claim concerns alleged past and existing wrongs, rather than an actual controversy regarding future rights, Plaintiff has failed to allege facts sufficient to state a cause of action for declaratory relief.

The demurrer is SUSTAINED.

RECOMMENDED RULING:

Defendant Michael Shaar’s Demurrer is SUSTAINED, WITHOUT LEAVE TO AMEND.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.